

Memorandum of Understanding (MOU)
Between
(_____ Institute of _____)
and SFAC

This Memorandum of Understanding (MOU) is signed on the day of ____ month ____ year ____ BETWEEN _____ having its registered office at _____ hereinafter referred to as _____ which expression shall include its successors and assigns of the first part

AND

Small Farmers' Agri-Business Consortium (SFAC), a Society registered under Societies Registration Act, 1860, having its Head Office at 5th floor, NCUI Auditorium Building, 3 Siri Institutional Area, August Kranti Marg Haus Khas, New Delhi-110016 referred to as SFAC which term shall include its successors and assigns etc. of the second part.

_____ and SFAC collectively referred to as PARTIES.

1. Whereas the Second Party desires to avail of the services of the First Party for the purpose of preparing Detailed Project Report (DPR) for the small farmers, Producer Groups, Agripreneurs, Units in Agri-Export Zones, producer organizations and Agriculture graduates.

2. This Agreement will be effective from _____ to _____ a period of two years which may be extended further as mutually agreed upon.

3. Use of Services and Expertise SFAC would utilize the services of the first party _____ in the following areas for.

- i) Preparation of detailed project reports relating to projects in agriculture, horticulture, aquaculture, apiculture, agro-processing, post harvest management of agri-produce, marketing infrastructure, cold storage, cold chain, medicinal and aromatic plants, fisheries, floriculture and project impact assessment etc.
- ii) Techno economic appraisal of project relating to agriculture, horticulture, aquaculture, apiculture, agro-processing, post harvest management of agri-produce, marketing infrastructure, cold storage, cold chain, medicinal and aromatic plants, sericulture, floriculture, social and environmental impact assessment etc.
- iii) SFAC may also avail the services of the first party in other areas of expertise on case to basis as per needs.

4. General obligations

- i) No information or documents acquired by first party shall be disclosed to a third party without the written consent of the Second Party.
- ii) The Parties agree that merely on the basis of this MOU, no legally binding obligation is cast upon either of the PARTIES, unless specific agreement(work order) is given by second party, whereupon, the terms of the specific agreement(work order) shall govern the rights and obligations of the PARTIES.

- iii) This MOU shall be construed and governed by the Laws of India.
- iv) This MOU shall be valid for a period of two years from the date of its signing. However, the agreements, work order, if any, included under this MOU shall be valid till the end of contracting obligations and responsibilities of the two parties. The validity of this MOU can be extended with the mutual consent of the two Parties in writing and this MOU can be terminated by either of the Parties by giving one month notice in writing, without assigning any reason subject to completion of the assignments in hand and payment of balance fee of various assignments including those on hand.

5. The DPR prepared by the First Party should be comprehensive in respect of the latest Standards available to subject matter. The Detailed Project Reports should widely elaborate and the details of machines / its supplier as well as the market potentiality, social/ environmental impacts, risk analysis, scope for replication of similar projects in other potential areas of the country and farmers backward/forward linkages, Technologies, flow charts, management, business practices and constitution should be highlighted.

6. The Second Party will release the consultancy fee as per the schedule of rates decided from time to time. (Current, schedule of rates payable to empanelled consultants under Schemes implemented by SFAC is attached).

7. No interim assistance shall be provided by SFAC before sanction/release of funds for the project by term lending bank and SFAC.

8. In case of any dispute concerning this Agreement, the same shall be referred for adjudication to the MD, SFAC. M.D., SFAC or his nominee shall be the sole arbitrator and provisions of Arbitration & Conciliation Act 1996 will apply to the said arbitration. The venue of such Arbitration will be Delhi.

IN WITNESS WHEREOF the parties hereto have executed this Memorandum of Understanding as on the date written above at New Delhi.

(Second Party)

(First Party)

Director (VCA)
Small Farmers' Agri-business Consortium
NCUI Auditorium Building,
5th Floor, 3, Siri Institutional Area,
August Kranti Marg,
Hauz Khas, New Delhi - 110016

Witness _____

Witness _____